

HOUSE No. 1709

The Commonwealth of Massachusetts

PRESENTED BY:

Colleen M. Garry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act known as "Drug Test Consent Bill" aka "Christina's Law".

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 1709

By Representative Garry of Dracut, a petition (accompanied by bill, House, No. 1709) of Colleen M. Garry relative to the penalty for operating a motor vehicle under the influence of alcohol or drugs. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1508 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act known as "Drug Test Consent Bill" aka "Christina's Law".

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 24 of chapter 90 of the General Laws, as appearing in the 2014
2 Official Edition, is hereby amended by striking out in lines 1 to 11, inclusive, the words
3 “Whoever, upon any way or in any place to which the public has a right of access, or upon any
4 way or in any place to which members of the public have access as invitees or licensees, operates
5 a motor vehicle with a percentage, by weight, of alcohol in their blood of eight one-hundredths
6 or greater, or while under the influence of intoxicating liquor, or of marijuana, narcotic drugs,
7 depressants or stimulant substances, all as defined in section one of chapter ninety-four C, or the
8 vapors of glue shall be punished by a fine of not less than five hundred nor more than five
9 thousand dollars or by imprisonment for not more than two and one-half years, or both such fine
10 and imprisonment.” and inserting in place thereof the following words:-

Whoever, upon any way or in any place to which the public has a right of access, or upon any way or in any place to which members of the public have access as invitees or licensees, operates a motor vehicle with a percentage, by weight, of alcohol in their blood of 8/100ths or greater, or while under the influence of any drug , shall be punished by a fine of not less than \$500 nor more than \$5,000 or by imprisonment for not more than 2 and 1/2 years, or both such fine and imprisonment. For the purposes of this paragraph, “drug” shall mean a substance which when taken into the human body can impair the ability of the person to operate a motor vehicle safely

SECTION 2. Said section 24 of said chapter 90, as so appearing, is hereby further amended by striking out paragraphs e to g, inclusive, and inserting in place thereof the following 3 subsections:-

(e) In any prosecution for a violation of paragraph (a), evidence of the percentage, by weight, of alcohol in the defendant’s blood at the time of the alleged offense, or evidence of the presence of a substance which when taken into the human body can impair the ability of the person to operate a motor vehicle safely, as shown by chemical test or analysis of the defendant’s blood or as indicated by a chemical test or analysis of the defendant’s breath, shall be admissible and deemed relevant to the determination of the question of whether the defendant was at such time under the influence of intoxicating liquor, or a substance which when taken into the human body can impair the ability of the person to operate a motor vehicle safely; provided, however, that if such test or analysis was made by or at the direction of a police officer, it was made with the consent of the defendant, the results thereof were made available to the defendant upon the defendant’s request and the defendant was afforded a reasonable opportunity, at the defendant’s request and expense, to have another such test or analysis made by a person or physician

selected by the defendant; and provided further, that blood shall not be withdrawn from any party for the purpose of such test or analysis except by a physician, registered nurse or certified medical technician. Evidence that the defendant failed or refused to consent to such test or analysis shall not be admissible against the defendant in a civil or criminal proceeding, but shall be admissible in any action taken by the registrar pursuant to paragraph (f) or in any proceedings provided for in section 24N. In the case of a test for the presence of alcohol, if such evidence is that such percentage was 5/100ths or less, there shall be a permissible inference that such defendant was not under the influence of intoxicating liquor, and the defendant shall be released from custody forthwith, but the officer who placed the defendant under arrest shall not be liable for false arrest if such police officer had reasonable grounds to believe that the person arrested had been operating a motor vehicle upon any such way or place while under the influence of intoxicating liquor; provided however, that in an instance where a defendant is under the age of 21 years and such evidence is that the percentage, by weight, of alcohol in the defendant's blood is 2/100ths greater, the officer who placed the defendant under arrest shall, in accordance with subparagraph (2) of paragraph (f), suspend such defendant's license or permit and take all other actions directed therein, if such evidence is that such percentage was more than 5/100ths but less than 8/100ths there shall be no permissible inference. A certificate signed and sworn to, by a chemist of the department of the state police or by a chemist of a laboratory certified by the department of public health, which contains the results of an analysis made by such chemist of the percentage of alcohol in such blood or of the presence of a substance which when taken into the human body can impair the ability of the person to operate a motor vehicle safely, shall be prima facie evidence of the percentage of alcohol in such blood, or of the presence of a

substance which when taken into the human body can impair the ability of the person to operate a motor vehicle safely.

(f) (1) Whoever operates a motor vehicle upon any way or in any place to which the public has right to access, or upon any way or in any place to which the public has access as invitees or licensees, shall be deemed to have consented to submit to a chemical test or analysis of the person's breath, urine or blood in the event that the person is arrested for operating a motor vehicle while under the influence of intoxicating liquor, or of a substance which when taken into the human body can impair the ability of the person to operate a motor vehicle safely; provided, however, that no such person shall be deemed to have consented to a blood test unless such person has been brought for treatment to a medical facility licensed pursuant to section 51 of chapter 111; and provided, further, that no person who is affected with hemophilia, or any other condition requiring the use of anticoagulants, shall be deemed to have consented to a withdrawal of blood. Such test shall be administered at the direction of a police officer, as defined in section 1 of chapter 90C, having reasonable grounds to believe that the person arrested has been operating a motor vehicle upon such way or place while under the influence of intoxicating liquor, or of a substance which when taken into the human body can impair the ability of the person to operate a vehicle safely. If the person arrested refuses to submit to a chemical or physical test required by the police officer, after having been informed that the person's license or permit to operate motor vehicles or right to operate motor vehicles in the commonwealth shall be suspended for a period of at least 180 days and up to a lifetime loss, for each refusal, no such test or analysis shall be made, except by order of the court, and the person shall have the person's license or right to operate suspended in accordance with this paragraph for a period of 180 days; provided, that each suspension for a refusal pursuant to this section

shall run consecutively; provided, further, that any person who is under the age of 21 years or who has been previously convicted of a violation pursuant to this section, subsection (a) of section 24G, operating a motor vehicle with a percentage by weight of blood alcohol of 8/100ths or greater, or while under the influence of intoxicating liquor, or of a substance which when taken into the human body impairs the ability of the person to operate a motor vehicle safely, in violation of subsection (b) of said section 24G, section 24L or subsection (a) of section 8 of chapter 90B, section 8A or 8B of said chapter 90B, or section 13 ½ of chapter 265 or a like violation by a court of any other jurisdiction shall have the person's license or right to operate suspended forthwith for a period of 3 years for each refusal; provided, further, that any person previously convicted of 2 such violations shall have the person's license or right to operate suspended forthwith for a period of 5 years for each refusal; and provided, further, that a person previously convicted of 3 or more such violations shall have the person's license or right to operate suspended forthwith for life based upon each refusal. If a person refuses to submit to any such test or analysis after having been convicted of a violation of said section 24L, the registrar shall suspend his/her license or right to operate for 10 years for each refusal. If a person refuses to submit to any such test or analysis after having been convicted of a violation of subsection (a) of said section 24G, operating a motor vehicle with a percentage by weight of blood alcohol of 8/100ths or greater, or while under the influence of intoxicating liquor in violation of said subsection (b) of said section 24G, or section 13 ½ of chapter 265, the registrar shall revoke the person's license or right to operate for life for each refusal. If a person refuses to take any test pursuant to this paragraph, the police shall:

i. immediately, on behalf of the registrar, take custody of such person's license or right to operate issued by the commonwealth.

- 102 ii. provide to each person who refuses a test, on behalf of the registrar, a written
103 notification of suspension in a format approved by the registrar; and
- 104 iii. impound the vehicle being driven by the operator and arrange for the vehicle to be
105 impounded for a period of 12 hours after the operator's refusal, with the costs for the towing,
106 storage and maintenance of the vehicle to be borne by the operator.

107 The police officer before whom any such refusal was made shall, within 24 hours,
108 prepare a report of each refusal. Each report shall be made in a format approved by the registrar
109 and shall be made under the penalties of perjury by the police officer before whom such refusal
110 was made. Each report shall set forth the grounds for the officer's belief that the person arrested
111 had been operating a motor vehicle on a way or place while under the influence of intoxicating
112 liquor, or a substance which when taken into the human body can impair the ability of the person
113 to operate a motor vehicle safely, and shall state that such a person had refused to submit to a
114 chemical test or analysis when requested by the officer to do so, such refusal having been
115 witnessed by another person other than the defendant. Each report shall identify the police
116 officer who requested the chemical test or analysis and the other person witnessing the refusal.
117 Each report shall be sent forthwith to the registrar along with a copy of the notice of intent to
118 suspend in a form, including electronic or otherwise, that the registrar deems appropriate. A
119 license or right to operate which has been confiscated pursuant to this subparagraph shall be
120 forwarded to the registrar forthwith. The report shall constitute prima facie evidence of the facts
121 set forth therein at any administrative hearing regarding the suspension specified in this section.

122 The suspension of a license or right to operate shall become effective immediately upon
123 receipt of the notification of suspension from the police officer. A suspension for a refusal of

124 either a chemical test or analysis of breath, urine or blood shall run consecutively and not
125 concurrently, both as to any additional suspension periods arising from the same incident, and as
126 to each other.

127 No license or right to operate shall be restored under any circumstances and no restricted
128 or hardship permits shall be issued during the suspension period imposed by this paragraph;
129 provided, however, that the defendant may immediately upon the entry of a not guilty finding or
130 dismissal of all charges under this section, said section 24G, said section 24L, or said section 13
131 $\frac{1}{2}$ of said chapter 265, and in the absence of any other alcohol or drug related charges pending
132 against said defendant, apply for and be immediately granted a hearing before the court which
133 took final action on the charges for the purpose of requesting the restoration of said license. At
134 said hearing, there shall be a rebuttable presumption that said license be restored, unless the
135 commonwealth shall establish, by a fair preponderance of the evidence, that restoration of said
136 license would likely endanger the public safety. In all such instances, the court shall issue
137 written findings of fact with its decision.

138 (2) If a person's blood alcohol percentage is not less than 8/100ths, or the person is under
139 the age of 21 years and the person's blood alcohol percentage is not less than 2/100ths, or if a
140 person is under the influence of a substance which when taken into the human body can impair
141 the ability of the person to operate a motor vehicle safely, such police officer shall do the
142 following:

143 i. immediately and on behalf of the registrar take custody of such person's drivers'
144 license or permit issued by the commonwealth:

145 ii. provide to each person who refuses the test, on behalf of the registrar, a written
146 notification of suspension, in a format approved by the registrar; and

147 iii. immediately report action taken under this paragraph to the registrar. Each report
148 shall be made in a format approved by the registrar and shall be made under the penalties of
149 perjury by the police officer. Each report shall set forth the grounds for the officer's belief that
150 the person arrested has been operating a motor vehicle on any way or place while under the
151 influence of intoxicating liquor, or of a substance which when taken into the human body can
152 impair the ability of the person to operate a motor vehicle safely, and that the person's blood
153 alcohol percentage was not less than 8/100ths or that the person was under the influence of a
154 substance which when taken into the human body can impair the ability of the person to operate
155 a motor vehicle safely, or that the person was under the age of 21 years at the time of the arrest
156 and whose blood alcohol percentage was not less than 2/100ths. The report shall indicate that the
157 person was administered a test or analysis, that the operator administering the test or analysis
158 was trained and certified in the administration of the test or analysis, that the test or tests were
159 performed in accordance with the regulations and standards promulgated by the secretary of
160 public safety and security, that the equipment used for the test was regularly serviced and
161 maintained and that the person administering the test had every reason to believe the equipment
162 was functioning properly at the time the test was administered. Each report shall be sent
163 forthwith to the registrar along with a copy of the notice of intent to suspend, in a form, including
164 electronic or otherwise, that the registrar deems appropriate. A license or right to operate
165 confiscated under this clause shall be forwarded to the registrar forthwith.

166 The license suspension shall become effective immediately upon receipt by the offender
167 of the notice of intent to suspend from a police officer. The license to operate a motor vehicle

shall remain suspended until the disposition of the offense for which the person is being prosecuted, but in no event shall such suspension pursuant to this subparagraph exceed 30 days.

In any instance where a defendant is under the age of 21 years and such evidence is that the percentage, by weight, of alcohol in the defendant's blood is 2/100ths or greater, and upon the failure of any police officer pursuant to this subparagraph to suspend or take custody of the driver's license or permit issued by the commonwealth, and, in the absence of a complaint alleging a violation of paragraph (a) of subdivision (1) or a violation of said sections 24G or 24L, the registrar shall administratively suspend the defendant's license or right to operate a motor vehicle upon receipt of a report from the police officer who administered such chemical test or analysis of the defendant's blood pursuant to subparagraph (1). Each such report shall be made on a form approved by the registrar and shall be sworn to under the penalties of perjury by such police officer. Each such report shall set forth the grounds for the officer's belief that the person arrested had been operating a motor vehicle on a way or place while under the influence of intoxicating liquor and that such person was under the age of 21 years at the time of the arrest and whose blood alcohol percentage was 2/100ths or greater. Such report shall also state that the person was administered such a test or analysis, that the operator administering the test or analysis was trained and certified in the administration of such test, that the test was performed in accordance with the regulations and standards promulgated by the secretary of public safety and security, that the equipment used for such test was regularly serviced and maintained, and the person administering the test had every reason to believe that the equipment was functioning properly at the time the test was administered. Each such report shall be endorsed by the police chief as defined in said section 1 of said chapter 90C, or by the person authorized by him, and shall be sent to the registrar along with the confiscated license or permit not later than 10 days

191 from the date that such chemical test or analysis of the defendant's blood was administered. The
192 license to operate a motor vehicle shall thereupon be suspended in accordance with section 24P.

193 (g) Any person whose license, permit or right to operate has been suspended under
194 subparagraph (1) of paragraph (f) shall, within fifteen days of suspension, be entitled to a hearing
195 before the registrar which shall be limited to the following issues: (i) did the police officer have
196 reasonable grounds to believe that such person had been operating a motor vehicle while under
197 the influence of intoxicating liquor, or of a substance which when taken into the human body can
198 impair the ability of the person to operate a motor vehicle safely, upon any way or in any place to
199 which members of the public have a right of access or upon any way to which members of the
200 public have a right of access as invitees or licensees, (ii) was such person placed under arrest,
201 and (iii) did such person refuse to submit to such test or analysis. If, after such hearing, the
202 registrar finds on any one of the said issues in the negative, the registrar shall forthwith reinstate
203 such license, permit or right to operate. The registrar shall create and preserve a record at said
204 hearing for judicial review. Within thirty days of the issuance of the final determination by the
205 registrar following a hearing under this paragraph, a person aggrieved by the determination shall
206 have the right to file a petition in the district court for the judicial district in which the offense
207 occurred for judicial review. The filing of a petition for judicial review shall not stay the
208 revocation or suspension. The filing of a petition for judicial review shall be had as soon as
209 possible following the submission of said request, but not later than thirty days following the
210 submission thereof. Review by the court shall be on the record established at the hearing before
211 the registrar. If the court finds that the department exceeded its constitutional or statutory
212 authority, made an erroneous interpretation of the law, acted in an arbitrary and capricious

213 manner, or made a determination which is unsupported by the evidence in the record, the court
214 may reverse the registrar's determination.

215 Any person whose license or right to operate has been suspended pursuant to
216 subparagraph (2) of paragraph (f) on the basis of chemical analysis of the person's breath, urine
217 or blood may within 10 days of such suspension request a hearing and upon such request shall be
218 entitled to a hearing before the court in which the underlying charges are pending or if the
219 individual is under the age of 21 years and there are no pending charges, in the district court
220 having jurisdiction where the arrest occurred, which hearing shall be limited to the following
221 issue; whether a blood test administered pursuant to paragraph (e) within a reasonable period of
222 time after such chemical analysis of the person's breath, shows that the percentage by weight, of
223 alcohol in such person's blood was less than 8/100ths or, relative to such person under the age
224 of 21 years was less than 2/100ths, if the court finds that such a blood test shows that such
225 percentage was less than 8/100ths or, relative to such person under the age of 21 years, that such
226 percentage was less than 2/100ths, the court shall restore such person's license, permit or right to
227 operate and shall direct the prosecuting officer to forthwith notify the criminal history systems
228 board and the registrar of such restoration.